

# Adepu Hari Prasad vs Adepu Jayalaxmi on 22 January, 2026

**Author: K. Lakshman**

**Bench: K. Lakshman**

HIGH COURT FOR THE STATE OF TELANGANA  
AT HYDERABAD

HON'BLE SRI JUSTICE K. LAKSHMAN  
AND  
HON'BLE JUSTICE VAKITI RAMAKRISHNA REDDY

FAMILY COURT APPEAL No.30 OF 2016

Date: 22.01.2026

Between

XXXXXXXXXX

AND

XXXXXXXXXX

.....Appellant

.....Respondent

JUDGMENT:

(Per Hon'ble Sri Justice K. Lakshman) Heard Mr. Jaya Prakash, learned counsel appearing for the appellant and Sri Thummaraju Rama Chandra Rao, learned counsel appearing for the respondent.

2. Feeling aggrieved and dissatisfied with the order dated 05.10.2015 in F.C.O.P. No.51 of 2013, passed by learned Judge, Family Court-cum-III Additional District and Sessions Judge, Warangal, the appellant preferred the present appeal.

3. The appellant herein is the husband and respondent herein is the wife. Their marriage was performed on 15.02.2009 as per Hindu rites and customs. It is an arranged marriage. Out of their wed-lock they were blessed with a female child on 11.02.2011.

4. The appellant-husband filed the aforesaid O.P. under Section 13 (1) (a) and (iii) of the Hindu Marriage Act, 1955, seeking dissolution of his marriage with the respondent-wife on the ground of cruelty and unsoundness of mind. According to him, the respondent used to abuse the appellant and beat him in presence of friends, parents and colleagues. She has also abused him in unparliamentarily language and she has implicated the appellant in a criminal case, she has also filed an application under Section 125 of the Cr.P.C., claiming maintenance. She has also tried to kidnap the appellant with the help of her 100 family members. She has also committed theft of bike. She used to maintain an illicit relation with the 3rd person. Thus, the respondent subjected the appellant to cruelty.

5. The respondent filed the counter denying the said allegations. It is specifically contended by her that she never abused or beat the appellant as alleged. She never tried to kidnap the appellant with the help of her family members or committed theft of bike as alleged by the appellant. She never maintained illicit relation as alleged by the appellant. To get rid of the respondent, the appellant made the said allegations falsely. By maintaining illicit relation with one Kondi Nalini, the appellant sought divorce. Therefore, she has lodged a complaint against the appellant, his mother and the said Nalini for the offences punishable under Sections 498-A, 506 of the IPC and Sections 3 and 4 of the Dowry Prohibition Act. The Appellant failed to maintain her and her daughter, therefore, she has filed an application under Section 125 of the Cr.P.C. Therefore, filing the aforesaid complaint on the appellant does not amount to cruelty.

6. To prove the said cruelty, the appellant examined himself as PW<sub>1</sub>, his mother as PW<sub>2</sub> and neighbours as PWs 3 and 4. He has filed Ex.A1 - Photo, Ex.A2 - office copy of legal notice dated 18.01.2013 and Ex.A3 - postal receipt. To disprove the said cruelty, the respondent examined herself as RW<sub>1</sub>, but did not exhibit any documents on her behalf. On consideration of the evidence both oral and documentary, the learned Family Court dismissed the aforesaid O.P filed by the appellant-husband. Challenging the same, appellant- husband preferred the present appeal.

7. Learned counsel for the appellant would contend that learned Family Court did not consider the depositions of PWs 1 to 4 and the fact that the respondent implicated the appellant in a criminal case and that she has filed an application under Section 125 of the Cr.P.C. Therefore, the impugned order is not on consideration on the aforesaid aspects. He has also placed reliance on the principle laid down by the Apex Court in K. Srinivas v. K. Sunita <sup>1</sup>, Malathi Ravi v. B.V. Ravi<sup>2</sup> and Samar Ghosh v. Jaya Ghosh <sup>3</sup>.

8. Whereas, learned counsel for the respondent would contend that the appellant, who maintained illicit relation with Ms. K.Nalini, had harassed her and in fact it is for the appellant to plead and prove such cruelty but the appellant failed to do so. Therefore, on consideration of the said aspects only, the learned Family Court dismissed the said O.P., as such, there is no error in the impugned order.

(2014) 16 SCC 34 (2014) 7 SCC 640 (2007) 4 SCC 511

9. It is apt to note that the marriage of the appellant was performed with the respondent on 15.02.2009 and they were blessed with a female child on 11.02.2011 out of their wedlock.

10. It is the appellant who filed the petition under Section 13 (i) (a)

(iii) of the Hindu Marriage Act, seeking dissolution of his marriage with the respondent on the ground of cruelty and unsoundness of mind. Therefore, he has to plead and prove the said cruelty, by producing cogent evidence.

11. A perusal of the record would reveal that though the appellant alleged that the respondent used to abuse him and his mother in filthy language, he did not examine any witness to prove the same.

Though the appellant made an allegation that the respondent used to go to his school, where he used to work, abused and beat him, he did not examine any witness including his colleagues. Though the appellant made bald allegations that the respondent had illicit relationship with third person, he has not made such third party as party to the present O.P.

12. It is also apt to note that though the appellant made an allegation that the respondent manhandled him and also kidnapped his brother with the help of her 100 family members, he has not lead any evidence to the said effect.

13. It is also not in dispute that respondent has lodged a complaint against the appellant, his mother and Smt. K.Nalini for the offence under Sections 498-A and 506 of the IPC and Sections 3 and 4 of the Dowry Prohibition Act before Women Police Station, Warangal and the same was registered as a case vide Crime No.42 of 2013 and on completion of the investigation, the investigating officer laid charge sheet against them and the same was taken up vide C.C.No.231 of 2013. Vide Judgment dated 27.10.2017, the learned I Additional Judicial Magistrate, Warangal acquitted the appellant, his mother and Smt. K.Nalini. The respondent did not prefer any appeal challenging the said judgment.

14. It is also not in dispute that the respondent and her daughter filed an application under Section 125 of Cr.P.C., and seeking maintenance from the appellant and the learned Trial Court granted Rs.5,000/- to the respondent and Rs.3,000/- to his daughter per month towards maintenance. It is his specific contention that he has been paying the said amount to the respondent and her daughter monthly. There is no default.

15. The term 'cruelty' is not defined in any statute. The learned Family Court or this Court did not find any material or evidence on record to come to a conclusion as to whether allegations made by the appellant-husband against the respondent-wife would constitute cruelty or not. Mere allegation of cruel acts is not sufficient. The appellant has to plead and prove cruelty by producing reliable evidence. In the present case, the appellant failed to produce reliable evidence, both oral and documentary to prove cruelty. Mere filing of an application under Section 125 of the Code of Criminal Procedure seeking maintenance is not cruel act.

16. As discussed supra, in the present case except alleging that the respondent used to abuse and beat him and his mother, he did not lead any evidence to prove the same. Burden lies on the appellant to plead and prove the cruelty. PWs 3 and 4 are neighbours, who belong to mahila mandal and their evidence is not reliable. On consideration of the said aspects only, vide impugned order dated 15.10.2025, the learned Family Court dismissed the aforesaid petition filed by the appellant. It is a reasoned order and well founded. There is no error in it.

17. In 2014, K.Srinivas Case (supra), the Apex Court on facts held that filing a false complaint against husband, his family members amounts to cruelty. As discussed supra, in the present case the respondent lodged a false complaint against the appellant, his mother and the said K.Nalini. It is specific contention of the respondent that the appellant used to maintain illicit relation with K. Nalini and used to harass the respondent. Therefore, it is not a false complaint.

18. In Malati Ravi's case (supra), the Apex Court held that this Court has to consider subsequent events. Learned counsel for the appellant placed reliance on the principle laid down by the Apex Court in the said decision to contend that the criminal case registered against the appellant was ended in acquittal and that the petition filed by respondent and her daughter Under Section 125 of Cr.P.C, was allowed. As discussed supra, lodging a complaint against the husband and his mother for the offences under Section 498A, does not amount to cruelty. Therefore, the facts of the said case are different to the facts of the present case.

19. In Samar Ghosh's case (supra), the Apex Court laid down certain illustrations of cruel acts including mental cruelty. They are only illustrations and not conclusions, as such, the facts of the said case are also not applicable to the present case.

20. Learned counsel for the appellant placed reliance on the principle laid down by the Division Bench of Andhra Pradesh High Court in Mirapala Venkata Ramana v. Mirapala Peddiraju 4. In the said case, on examination of the facts, the Division Bench held that evidence of neighbors is not reliable. As discussed supra, in the present case also both PW's 3 and 4 are neighbours, members of Mahila Mandal and their evidence is not reliable.

21. As discussed supra, on consideration of the said aspects only, learned Family Court dismissed the petition filed by the appellant. It is a reasoned order. There is no error in it.

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22. In the light of the aforesaid discussion, appellant failed to make out any case to interfere with the impugned order. This appeal is liable to be dismissed and accordingly dismissed.

Consequently, miscellaneous petitions, if any, pending in this appeal shall stand closed.

----- J U S T I C E   K .   L A K S H M A N  
JUSTICE VAKITI RAMAKRISHNA

REDDY Date: 22.01.2026 Js